

HOUSE No. 3680

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Higgins and Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act fostering intercity Passenger Rail Fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/15/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>9/10/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/27/2025</i>

HOUSE No. 3680

By Representatives Higgins of Leominster and Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 3680) of Natalie M. Higgins and Michael P. Kushmerek relative to the creation of a fund to finance rail and transportation related projects. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act fostering intercity Passenger Rail Fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws shall be amended by adding the following
2 section:-

3 2EEEEEE. There shall be established and set up on the books of the commonwealth a
4 separate fund to be known as the InterCity Regional Passenger Rail Fund, which shall be used
5 exclusively for financing rail transportation-related projects to expand and support
6 passenger/commuter rail throughout the Commonwealth, beginning with the Route 2 Corridor.

7 The fund shall be subject to appropriation and shall be used for transportation related expenses of
8 the executive office of transportation or any successor agency or authority to pay for contracts,
9 services and debt service on bonds issued by, the Commonwealth for InterCity Passenger Rail
10 expansion or improvements. Funds may also be expended for contract assistance for providing
11 such services.

SECTION 2. Chapter 23K of the General Laws shall be amended by adding the following section:-

Section 59A. There shall be established and set up on the books of the commonwealth a New Gaming Revenue Fund which shall receive twenty-five percent of the gross gaming revenues collected from the Region D gaming licensee. The commission shall be the trustee of the fund and shall transfer monies in the fund as follows:

(1) 100 per cent of the revenue received from a category 1 licensee shall be transferred to the InterCity Passenger Rail Fund established pursuant to section 2EEEEEE of chapter 29;

(2) new gaming tax revenue from other licensed gaming operations as deemed by the legislature.

SECTION 3. Subsection (a) of section 19 of chapter 23K of the general laws is hereby amended by striking out clause (1) and inserting in place thereof the following clause (1):

“(1) region A: suffolk, middlesex, essex and norfolk counties;”

SECTION 4. Said subsection (a) of said section 19 of said chapter 23K, as so appearing, is hereby further amended by striking out, at the end of clause (2), the word “and”.

SECTION 5. Said subsection (a) of said section 19 of said chapter 23K, as so appearing, is hereby further amended by striking out, at the end of clause (3), the word “counties“ and inserting in place thereof the following words:-

“counties; and”

31 SECTION 6. Said subsection (a) of said section 19 of said chapter 23K, as so appearing,
32 is hereby further amended by inserting after clause (3) the following clause (4):

33 “(4) region D: consisting of the cities and towns located in the Worcester Northern
34 District Registry of Deeds, being Ashburnham, Fitchburg, Leominster, Lunenburg, and
35 Westminster.”

36 SECTION 7. Said section 19 of said chapter 23K, as so appearing, is hereby further
37 amended by inserting a new subsection (h), which shall provide as follows:

38 “(h) No gaming license shall be issued by the commission in region D unless it shall be
39 situated on a site containing not less than 70 contiguous acres.”